

Court No. - 3

Case :- WRIT - C No. - 53741 of 2011

Petitioner :- Dharmendra Singh Chauhan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Shiv Kumar Sharma, Anita Singh

Respondent Counsel :- C.S.C., Shobhit Dubey

Hon'ble Amitava Lala, J.

Hon'ble Vinay Kumar Mathur, J.

The petitioner has contended before us that though the electricity is to be distributed to various consumers but as because the poll has been installed on the land of the petitioner, he has been called to deposit a sum of Rs. 87,777/-.

On the otherhand, learned counsel appearing for the respondents has contended before this Court that this is an estimate on their part but the same is not directed to be paid by the petitioner alone, but by all consumers.

Against this background, we are of the view that the matter will require to be heard and disposed of by the Consumer Grievance Redressal Forum on the basis of application of the petitioner to be made within a period of seven days from the date of obtaining a certified copy of the order and the Forum, in turn, will call upon the appropriate representative of the Electricity Department and representative of the Nagar Nigam and Gram Panchayat and will finalise the issue as per clause 4.6(f) of the U.P. Electricity Supply Code, 2005 in their presence within a period of one month thereafter.

With the above directions, the writ petition is disposed of at the stage of admission, however, without imposing any cost.

Order Date :- 16.9.2011

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